

TENTATIVE RULING FOR JULY 6, 2026

Department R12 - Judge Kory Mathewson

Coolidge Goodall v. San Antonio Regional Hospital – CIVRS2501396

Motion: Demurrer to Second Amended Complaint (SAC)

Movant: Defendant San Antonio Regional Hospital

Respondent: Plaintiff Coolidge Goodall

RULING: Demurrer to SAC is SUSTAINED in its entirety, with Leave to Amend within 30 days. Plaintiff has failed to allege standing either as a successor-in-interest or as a wrongful death plaintiff. Plaintiff fails to allege sufficient facts to state a cause of action in that it fails to allege that a duty of care was owed to decedent.

Defendant - to provide Order(s) and give Notice.

The parties have met and conferred as required per Code Civ. Proc., §§430.41(a), 435.5(a).

Plaintiff's attempts to commence a survivor action, if any, on behalf of decedent's estate. Code of Civil Procedure section 377.32, subdivision (a) provides that "[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or declaration under penalty or perjury... ." The declaration must state, among other things, that "no other person has a superior right to commence the action or proceeding." (Code Civ. Proc., § 377.32(a)(6).)

Here, Plaintiff has failed to file the requisite successor in interest declaration. Accordingly, Plaintiff lacks standing to bring a survivor action.

With respect to the SAC's attempt to plead an action for "wrongful death damages," a wrongful death plaintiff is required to plead and prove standing to sue. (*Nelson v. County of Los Angeles* (2003) 113 Cal.App.4th 783, 789.) "In California, wrongful death actions are statutory in origin and exist "only so far and in favor of such person as the legislative power may declare." [Citation.]" (*Ceja v. Rudolph & Sletten, Inc.* (2013) 56 Cal.4th 1113, 1118.) The right to bring an action for wrongful death is limited to persons identified in Code of Civil Procedure section 377.60. (See *Scott v. Thompson* (2010) 184 Cal.App.4th 1506, 1510.)

Code of Civil Procedure section 377.60 describes persons with standing to bring wrongful death claims, providing in relevant part: "[a] cause of action for the death of a person caused by the wrongful act or neglect of another may be asserted by any of the following persons or by the decedent's personal representative on their behalf: (a) The decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession." (Code Civ. Proc., § 377.60, subd. (a).)

"For the purpose of this section, 'domestic partner' means a person who, at the time of the decedent's death, was the domestic partner of the decedent in a registered domestic partnership established in accordance with subdivision (b) of Section 297 of the Family Code." (Code Civ. Proc., § 377.60, subd. (f)(1).) Under Family Code section 297, "(a) Domestic partners are two

adults who have chosen to share one another's lives in an intimate and committed relationship of mutual caring. ... A domestic partnership shall be *established in California when both persons file a Declaration of Domestic Partnership with the Secretary of State* ... and at the time of filing, all of the following requirements are met: (1) Neither person is married to someone else or is a member of another domestic partnership with someone else that has not been terminated, dissolved, or adjudged a nullity. (2) The two persons are not related by blood in a way that would prevent them from being married to each other in this state. (3) Both persons are at least 18 years of age, except as provided in Section 297.1. (4) Both persons are capable of consenting to the domestic partnership." (Emphasis added.)

Here, the SAC fails to allege facts that satisfy the statutory requirements listed in Section 377.60. Namely, the SAC fails to allege Plaintiff and decedent were in a "*registered domestic partnership*" as defined in Code of Civil Procedure section 377.60, subdivision (f)(1). Accordingly, the SAC fails to plead sufficient facts stating Plaintiff has standing to bring this wrongful death action.

Since SAC has failed to allege that Plaintiff has standing to bring this action either as successor-in-interest or as a wrongful death plaintiff, the Court sustains the demurrer in its entirety.

Regarding SARH's demurrer to the second cause of action for premises liability, "[t]he elements of a cause of action for premises liability are (1) a legal duty owed to the plaintiff to use due care; (2) breach of duty; (3) causation; and (4) damage to the plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) The second cause of action fails to allege that a legal duty of care was owed to decedent. Thus, it fails to state facts sufficient to constitute the cause of action.

Dated: July 6, 2026

Judge Kory Mathewson